

Tentative Rulings
June 12, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

8. *Austin v. Buchelle, et al*, Case No. CIVSB2426609
Plaintiff's Motion for Leave to File an Amended Answer
6/12/26, 9:00 a.m., Dept. S-17

This matter was continued from April 22, 2026, for supplemental declaration

The Court would **DENY**.

Procedurally, a motion to amend a pleading must: (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Rules of Court, rule 3.1324(a).) Additionally, a separate declaration must accompany the motion and specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Rules of Court, rule 3.1324(b).)

First, the Court will hear argument on whether a lone-filed "amended answer" – filed February 10, 2026 – is intended to satisfy the requirement to provide a copy of the proposed First Amended Complaint. Second, the supplemental declaration now simply says that the amendment is necessary because Plaintiff did not do a public records search until April of 2026. This does not apprise the Court as to why the issues should not have reasonably been known prior to this act, given the real property nature of the case. Further, there is no discussion of why the new causes (which raise the number of causes from two to six) should relate back to the original filing, as opposed to being their own separate action (presuming they are not subject to a statute of limitations).

In this case, none of the supporting documents affirm a true proposed amendment. The submitted supplemental declaration is still vague as to proposed changes, and it fails to set forth any facts asserting that the proposed changes are necessary and proper or why the request was not made sooner.

9. *Stanley, et al, v. Lake Chalet Homeowners Association, et al*, Case No. CIVSB2320918
Defendants/ Cross-Complainants Prines' Motion for Preliminary Injunction
6/12/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to Evidentiary Objections: The Court would **OVERRULE** the Stanleys' objection numbers 1-4, 6, 9, 10, and 11. The Court would **GRANT** objection numbers 5, 7, 8, and 12.

As to the Motion: The Court would **DENY** the motion for Temporary Restraining Order (TRO) and Order to Show Cause (OSC) regarding Preliminary Injunction.

Case Summary

In essence, this is a breach of fiduciary duty case. Plaintiffs own one unit of a triplex that is subject to the Covenants, Conditions, and Restrictions (CC&Rs) of Defendant Lake Chalet Homeowners Association (HOA). Plaintiffs assert that Defendant HOA violated the CC&Rs and relevant Bylaws by failing to maintain and repair common areas; not maintaining proper financial records; allowing Defendants Prine to make unilateral decisions concerning the development without proper meetings or voting; and permitting short term rentals in violation of the CC&Rs and City regulations and ordinances. As such, Plaintiffs filed suit on September 8, 2023. The operative First Amended Complaint (FAC) asserts causes for (1) breach of the HOA governing documents; (2) breach of fiduciary duty; (3) negligence; (4) nuisance; (5) violation of open meeting act; (6) failure to permit inspection of records; and (7) declaratory relief.

On October 30, 2023, the Prine Defendants filed a Cross-Complaint against Plaintiffs (Cross-Defendants). They filed a First Amended Cross-Complaint (FACC) against Plaintiffs on November 6, 2023, alleging causes for (1) breach of the CC&Rs; (2) nuisance; (3) interference with contractual relations; and (4) declaratory relief. On November 20, 2023, the HOA Defendant also filed a Cross-Complaint against Plaintiffs (Cross-Defendants), asserting causes for (1) breach of the CC&Rs; (2) nuisance; and (3) declaratory relief. And, on November 20, 2023, the HOA filed a Cross-Complaint against Cross-Defendants Stanley for (1) breach of equitable servitude/ CC&Rs; (2) nuisance; and (3) declaratory relief.

Notably, on October 10, 2025, the Court granted Plaintiff's motion for leave to file a Supplemental Complaint as to the Violation of Open Meeting Act and the declaratory relief cause as it relates to the Violation of Open Meeting Act. Further, on October 29, 2025, the Court granted a temporary restraining order to preclude Defendants from conducting certain Homeowners Association (HOA) business.

Statement of Law

Code of Civil Procedure section 527(a) allows for the issuance of a preliminary injunction at any time before judgment upon a verified complaint or upon affidavits that show satisfactorily that sufficient ground exists. A preliminary injunction is appropriate if the party is entitled to the

relief demanded and irreparable harm will result to the applicant if the injunction is not granted. (Code Civ. Proc., § 526(a)(2).) In ruling on a request for a preliminary injunction, the court must evaluate two interrelated factors: (1) the likelihood that the movant will prevail on the merits at trial; and (2) whether the interim harm to the movant from refusal to grant preliminary injunction outweighs the harm to the respondent from the imposition of the preliminary injunction. (*IT Corp. v. County of Imperial* (1983) 35 Cal.3d 63, 69-70.)

Analysis

At issue is the Prines' Motion for Temporary Restraining Order and Order to Show Cause re: Preliminary Injunction. Though styled as a request for a temporary restraining order, it is understood to be a motion for a preliminary injunction because a hearing has been set. As stated in *Chico Feminist Women's Health Center v. Scully* (1989) 208 Cal.App.3d 230, 237, FN 1, "[a] temporary restraining order is issued to prohibit the acts complained of, pending a hearing on whether the plaintiff is entitled to a preliminary injunction." (6 Witkin, Cal. Procedure (3d ed. 1985) Provisional Remedies, § 247, p. 214.)

Here, movants seek an injunction to prohibit Plaintiffs/ Cross-Defendants Stanleys from (1) creating, permitting, or directing unreasonable noise toward the Prines' units, including but not limited to amplified sounds, alarms, recorded music, or artificial voices; (2) using speakers, audio devices, or other sound-emitting equipment directed to the Prines' units during nighttime and early-morning hours; and (3) engaging in conduct that interferes with the quiet enjoyment of the Prines' property by the Prines, their guests, tenants or invitees. They assert such relief is necessary because the Stanleys have engaged in a pattern of deliberate noise harassment. Having reviewed the evidence and arguments, it does not appear that movants have met their burden.

As an initial matter, it does not appear that the FACC provides a basis for the relief sought. "A preliminary injunction is warranted only if there is on file a complaint which states a sufficient cause of action for injunctive relief of the character embraced in the preliminary injunction. [Citation.]" (*Moreno Mut. Irrigation Co. v. Beaumont Irrigation Dist.* (1949) 94 Cal.App.2d 766, 778.) Here, although the first cause in the FACC is for breach of equitable servitudes and the second is for nuisance, the issues asserted in the moving papers concern noises that occurred in 2026, well after the FACC was filed in 2023.

Even in the alternative, it does not appear that the Prines have adequately shown the likelihood that they would prevail on the merits on the claimed noise issues because the Stanleys have lowered the sound from security system at issue and the Prines do not show irreparable harm because monetary damages appear sufficient.

The statements provided by movants appear insufficient to show that sounds from the Stanleys' property are interfering with the use and enjoyment of the Prines' property. For instance, Mrs. Prine does not declare that the sounds affected her ability to sleep at the property on or about April 6, 2026, but it did disturb her enough to report it to the police on

April 7, 2026, like her guest Mrs. Pinales did on or about January 14, 2026. However, despite this interference, it is questionable whether the invasion is substantial because Mrs. Pinales only described one night though it appears she stayed two nights. She described the effects of the sounds regarding the night of January 14 and into the morning of January 15, but there are no statements regarding the night of January 15, as she stayed until January 16, 2026. Also, even though the parties have lived next to each other for multiple years, only one guest's complaint is properly before the Court. Similarly, Mrs. Prine, in her declaration, only references two encounters, not that it is ongoing and every night. These facts bring into question whether the nature, duration, or amount of noise is unreasonable.

Further, Mr. Stanley declares that he had various motion-sensor cameras installed in and around his unit since shortly after purchasing it in 2019, to monitor and protect his home, for security purposes. He states there is a very high level of transient activity due to the Prines' and Sundes' use of their units for their high turnover commercial short term rental business, which he alleges brings disruptive behavior and general safety concerns. (T. Stanley Decl., ¶13.) Mr. Stanley further declares that he has no external speakers on his unit or on the decks or garages. When the security cameras are activated by light or motion or noise, he states he will receive a tone or voice notification inside his home or on his mobile phone if he is not there. However, he represents that the system is not configured to emit any notable sound or alarm outside the home from the cameras themselves unless they are put into an SOS mode or manually activated as a warning or to contact local fire or police or medical personal by him or someone in the home. To his knowledge neither of those should have occurred at the time or dates alleged unless there was some malfunction or power outage issue, which he represents occurring often in Big Bear. (Id., ¶14.) Mr. Stanley also declares that the first time he was made aware of any complaint of noise emanating from his unit was on April 8, 2026, when the Prines filed their *ex parte* for the Temporary Restraining Order. He states he was never notified by email or text or a call by the Prines or Sundes or any local authorities who have his contact information for HOA meeting and notice purposes, of any noise disturbances from his property occurring on the weekend of January 14, 2026, when the events purportedly occurred. He also states that he was never contacted by police or fire personnel who the Prines claim responded to their noise complaint. (Id., ¶15.)

Mr. Stanley furthermore declares that he did not deliberately create or cause any noise as purported, on any occasion. He states the security cameras exist to monitor his property and alert him of persons approaching or in the vicinity of his property. They do not, to his knowledge, spontaneously activate to make any loud exterior noise. (Stanley Decl., ¶18.) And, importantly, he declares that although he did not observe any issues or loud noises or alarms inside or outside his unit – “[he] did adjust the Security System using some of new software features available with these systems to make the ‘trigger-zone’ more focused on the Stanley [Property] and assets and to the areas of the HOA’s common areas that are used to access the Stanley [Property] and to record and notify of those appropriate ‘Triggers’ and recording of activities occurs quietly.” (Id., ¶13.) He also states that he “lowered the motion-sensitivity to

prevent wildlife or other types of sound or motion from triggering the sensors during the late night or early morning since there are many coyotes, racoons, squirrels, birds, bats, rats, deer (and kids and pets and more) that do show up more than occasionally at various locations and times on the property.” (Id., ¶14.) Lastly, he declares if the system is still being triggered late at night or in the early morning, it is most likely because the Prines, Sundes, or one of their customers or some other animal are approaching his home garages, vehicles, pets or personal space, which is what the Security System is intended to capture and hopefully deter or prevent – or at least archive for later follow up if not immediate. (Id., ¶15.)

10. *City of Riverside v. Rubidoux Community Servs. Dist.*, Case No. CIVSB1310520
Evidentiary Hearing/ Oral Argument
6/12/26, 9:00 a.m., Dept. S-17

Here, the City of Riverside seeks to recover \$21,099,675.00 from the District, representing the District’s 7.6% contractual share of capital costs for improvements to the regional wastewater treatment plant. (Statement of Evidence (SOE) # 1.)

The Court of Appeal overturned the initial trial court decision and instructed the lower court to focus specifically on whether any post-1990 regulatory changes necessitated and directly required the plant upgrades, making them nondiscretionary under the 1990 Agreement.

The limited nature of the review of evidence as framed by the Court of Appeals is whether these improvements were required by post-1990 environmental regulations, which Rubidoux must help fund, or were discretionary (or a matter of preference) which Rubidoux could avoid. The Court of Appeal directed further proceedings to “determine the specific regulatory requirements that necessitated some or all of the upgrades, if any.” (SOE Nos. 2-3.)

The Court is inclined to take the matter under submission following oral argument.

As to the Objection to Notice of Intent to Introduce Oral Witness Testimony: Riverside objected the District’s notice of intent to introduce oral testimony, citing prior failure to disclose the intended witness, failure to identify her as an expert, and inappropriate new testimony. The Court will hear argument on this topic, but it is inclined to **GRANT** the objection and preclude the testimony, as no new evidence was requested from the Court and its allowance may cause undue prejudice and delay.

8. *Tembrina v. Williams Furnace Co., et al*, Case No. CIVSB2127440
Motion for Preliminary Approval of Class Action Settlement
6/12/26, 1:30 p.m., Dept. S-17

The Court would **CONTINUE** for supplemental briefing.

There are a number of concerns: First, the proposed PAGA period is intended to run from January 12, 2020 to July 22, 2024. (Settlement, 1.35.) However, the earliest PAGA notice was sent in to the LWDA on July 8, 2021. (Settlement, 2.1; Khalili Decl., ¶15.) This proposed PAGA period runs beyond the available statute of limitations and no information is provided to explain why it would be proper to exceed the four corners of the operative documents. Second, the proposed agreement seeks to designate 90% of the settlement payments as representative of penalties and interest. (Settlement, 3.2.4.1.) No explanation is provided why this ratio is appropriate when the central allegations are for *wages*. (See FAC; also Khalili Decl., ¶18 [bulk of exposure relating to overtime].) Finally, the settlement proposes attorneys' fees at 35% of the gross settlement. While the Court does not disapprove of this above-normal percentage *per se*, it would require some showing of unusual risk or complexity to warrant the upward departure. All these issues must be addressed prior to the next hearing.
